

Fly GACA — Launch-Gate Legal Checklist

SECTION 02-legal TYPE checklist STATUS **active** OWNER Founder UPDATED 2026-07-27

Document: [launch-gate-legal-checklist-2026-06-14.md](#) **Version:** 1.0 — 2026-06-14 **Prepared by:** AI assistant (Claude) — for founder review **Status:** Living document — update as items complete. Cross-referenced against: [legal-gap-audit-2026-06-14.md](#), [fly-gaca-review-action-plan.md](#) §6–7, and ROADMAP launch gate.

NOT LEGAL ADVICE. This checklist is a business-operations tracking document only. It does not substitute for advice from a qualified Saudi-licensed lawyer. All items marked "needs lawyer" must receive professional legal review before they are treated as complete.

Overview — Launch Gate Summary

Three distinct launch events have different legal requirements:

Launch Event	Description	Legal Gate
L0 — Soft open (library, no accounts)	Public access to free library; no accounts; no payments	Minimal — terms + disclaimer + pending name opinion
L1 — Accounts launch	User registration, free tier, waitlist conversion	Full PO list complete; Privacy Notice updated; Cookie Notice live
L2 — Payments launch (Pro / Exam Pass)	Paid subscriptions via Moyasar; ZATCA VAT	L1 complete + entity + ZATCA + refund policy + B2B DPA
L3 — Academy B2B launch	Signed Academy agreements; cadet processing	L2 complete + B2B DPA signed with each customer

Table 1 — Absolute Launch Blockers (Nothing Ships Without These)

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P0-1	Corpus rights legal opinion	Written opinion from Saudi IP counsel on whether Fly GACA may host Tier A GACA documents	OUTSTANDING — brief drafted	Founder → Saudi IP lawyer	All launches (L0-L3)	Receive written opinion; act on counsel's advice (host / link-only / request GACA permission)
P0-2	"Fly GACA" name legal opinion	Written trade mark / passing-off opinion from Saudi IP counsel	OUTSTANDING — brief drafted	Founder → Saudi IP lawyer	Entity formation → bank → payments → L2	Receive opinion; lock name; commence SAIP trade mark application
P0-3	Terms of Use (public website)	terms-of-use-draft-2026-06-14.md — lawyer reviewed and published	DRAFTED — awaiting lawyer review	Founder → lawyer	L0	Lawyer sign-off; email contact updated (<code>hello@</code> → <code>i@</code>); published at flygaca.com/terms
P0-4	Disclaimer and Educational Use Notice	disclaimer-and-educational-use-notice-draft-2026-06-14.md — lawyer reviewed and published	DRAFTED — awaiting lawyer review	Founder → lawyer	L0	Lawyer sign-off; published at flygaca.com/disclaimer ; replaces existing draft
P0-5	Privacy Notice (pre-account, current)	privacy.html — existing draft covers pre-account stage	EXISTING DRAFT adequate for L0 only — email needs update	Founder	L0	Fix <code>hello@</code> → <code>i@</code> or <code>privacy@</code> in existing privacy.html; no lawyer required for this specific fix

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P0-6	PDPL DPIA — lawyer/specialist review	pdpl-compliance-program-and-dpia.docx (04-compliance-ksa/) — internally complete; needs PDPL counsel review	INTERNALLY DRAFTED — awaiting PDPL specialist review	Founder → PDPL counsel	L1 (accounts + AI)	PDPL counsel or SDAIA-qualified consultant signs off on DPIA before AI features go live

Table 2 — Required Before Account Launch (L1 — within 30 days of L0)

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P1-1	Privacy Notice — full account stage	privacy-notice-full-stage-draft-2026-06-14.md — covers accounts, AI, payments	DRAFTED — awaiting lawyer review	Founder → lawyer	L1	Lawyer review; published to replace pre-account privacy.html before first account is created
P1-2	Cookie and Tracking Notice	cookie-and-tracking-notice-draft-2026-06-14.md	DRAFTED — awaiting lawyer review	Founder → lawyer	L1	Lawyer review; published at flygaca.com/cookies ; linked from footer and Privacy Notice
P1-3	Acceptable Use Policy (AUP)	acceptable-use-policy-draft-2026-06-14.md	DRAFTED — awaiting lawyer review	Founder → lawyer	L1	Lawyer review; published at flygaca.com/aup ; linked from Terms of Use
P1-4	PDPL Breach Notification Procedure	pdpl-breach-notification-procedure-draft-2026-06-14.md	DRAFTED — awaiting lawyer review	Founder → lawyer	L1	Lawyer review; SDAIA notification channel confirmed; document operational before first account
P1-5	IP and Takedown Procedure	ip-and-takedown-procedure-draft-2026-06-14.md	DRAFTED — awaiting lawyer review	Founder → lawyer	L1	Lawyer review; published at flygaca.com/ip-policy or linked from Terms of Use

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P1-6	Contact email consistency	All legal docs currently show <code>hello@flygaca.com</code> — audit confirmed correct address is <code>i@flygaca.com</code> and <code>legal@flygaca.com</code>	OPEN — quick fix	Founder	L0 (low risk but should be fixed)	Update all draft documents and live <code>terms.html</code> / <code>disclaimer.html</code> / <code>privacy.html</code>
P1-7	Sub-Processor Register — current	sub-processor-list-and-dpa-register.docx (04-compliance-ksa/) — confirm Cloudflare Web Analytics, Moyasar are listed	PARTIAL — review needed	Founder	L1	Review and update register; ensure all active sub-processors listed before accounts go live

Table 3 — Required Before Payments Launch (L2 — ~30 days post L1)

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P2-1	Entity formation	<code>01-governance/company-facts.md</code> — the registered record	DONE (2026-07-27) — BDA Company International (شركة بدع الدولية), LLC, CR 7030976893 issued 23/09/2022, active; bank account open (ANB via SiFi). MISA not required (100% Saudi LLC)	—	Done. (P0-2 name opinion still open for the <i>brand</i> , not the entity)	
P2-2	ZATCA VAT registration	ZATCA certificate + <code>03-finance/invoicing-and-vat-returns.md</code>	DONE — VAT 311415259500003, effective 2025-11-01, quarterly. ⚠ First return (due 2026-01-31) overdue — see the invoicing doc's immediate action	—	Done; returns backlog is the open action	
P2-3	ZATCA e-invoicing (Fatoora) compliance	zatca-fatoora-e-invoicing-compliance-pack.docx (04-compliance-ksa/)	DRAFTED — not yet implemented	Founder	L2	Fatoora Phase 1 compliance enabled; QR-code invoices issued for each transaction

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P2-4	Public Refund and Cancellation Policy	Covered in Terms-of-Use §5.4 — but may also need a standalone page for Moyasar compliance and App Store requirements	PARTIALLY COVERED in Terms of Use	Founder	L2	Confirm with Moyasar what refund policy display is required; publish standalone page if needed
P2-5	Customer Agreement & EULA — lawyer reviewed	customer-agreement-eula.docx (02-legal/) — comprehensive draft exists but not yet lawyer-reviewed	EXISTING DRAFT — awaiting lawyer review	Founder → lawyer	L2 (Pro paid tier)	Lawyer review; Arabic translation initiated; published as paid-tier agreement
P2-6	Moyasar merchant agreement and integration	Commercial agreement with Moyasar; payment page compliance	IN PROGRESS	Founder	L2	Moyasar agreement signed; integration tested; refund policy displayed as required

Table 4 — Required Before Academy B2B Launch (L3)

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P3-1	B2B Data Processing Agreement (DPA)	b2b-data-processing-agreement-draft-2026-06-14.md	DRAFTED — awaiting lawyer review	Founder → lawyer	L3	Lawyer review; Arabic translation; must be signed by each Academy customer before data processing begins
P3-2	Order Form template	No standalone Order Form exists (referenced in Customer Agreement)	MISSING	Founder → lawyer	L3	Create and lawyer-review an Order Form template to accompany the Customer Agreement

#	Item	Document / Deliverable	Status	Owner	Blocks	What Unblocks It
P3-3	60-Day Pilot Agreement — current	60-day-pilot-agreement.docx (02-legal/) — existing draft	EXISTING — check currency against updated Terms	Founder	L3 (pilot deals)	Review for consistency with updated Terms of Use and DPA; lawyer confirm adequate
P3-4	SLA — current	service-level-agreement-sla.docx (02-legal/) — existing draft	EXISTING — check currency	Founder	L3	Review for consistency with updated commercial terms

Table 5 — Lawyer-Only Items (Fly GACA Cannot Produce These)

#	Item	Brief Document	Status	Owner	Blocks	Note
L-1	Corpus rights opinion	lawyer-brief-corpus-rights-2026-06-14.md	BRIEF READY — awaiting lawyer engagement	Founder → Saudi IP lawyer	L0 (absolute blocker)	Cannot be self-produced; requires written opinion from Saudi IP lawyer
L-2	Name / trade mark opinion	lawyer-brief-name-opinion-2026-06-14.md	BRIEF READY — awaiting lawyer engagement	Founder → Saudi IP lawyer	Entity + L2 (absolute blocker)	Cannot be self-produced; requires written opinion + SAIP advice
L-3	PDPL DPIA specialist review	pdpl-compliance-program-and-dpia.docx (04-compliance-ksa/)	INTERNALLY DRAFTED	Founder → PDPL specialist	L1 (AI features)	Internal DPIA completed by founder; needs SDAIA-qualified consultant or PDPL lawyer sign-off
L-4	Arabic translations of P0/P1 documents	All P0 and P1 documents	NOT STARTED	Founder → certified legal translator	L1 (best practice); L2 (may be required)	Counsel should advise whether Arabic versions are legally required or best practice for KSA consumer contracts
L-5	SAIP trade mark application	Depends on P0-2 opinion	NOT STARTED	Founder → Saudi trade mark attorney	Post-name opinion	File as soon as name is confirmed

Table 6 — Medium-Term Items (P2 — within 90 days post-launch)

#	Item	Status	Priority
Standalone AI Output Policy for Captain Adel	Not yet drafted	P2	
Content Attribution and Citation Policy	Not yet drafted	P2	
White-Label / Reseller Agreement (if channel sales pursued)	Not yet drafted	P2	
Arabic translations of all P0/P1 documents	Not started	P2 (legal requirement assessment pending counsel advice)	

Table 7 — Pre-Series A Items (P3)

#	Item	Note
External PDPL audit by certified KSA privacy consultant	After accounts launch and 3+ months of data	
Full trade mark registration (SAIP — KSA + GCC consideration)	After name opinion and SAIP advice	
External security penetration test	Before institutional / government Academy customers	
Compliance with NCA Essential Cybersecurity Controls	As platform scales	

Quick-Reference: What Unblocks Soft Launch (L0)?

- ☐ P0-1 corpus rights opinion — OR a precautionary link-only model adopted pending the opinion
- ☐ P0-2 name opinion — OR launch under "Fly GACA" at acceptable risk (founder decision after reading this checklist)
- ☒ P0-3 Terms of Use — DRAFTED (needs lawyer review + email fix before publish)
- ☒ P0-4 Disclaimer — DRAFTED (needs lawyer review + email fix before publish)
- ☐ P0-5 email fix — update `hello@` to `i@` in all live pages (15-minute task)
- ☐ LAWYER ENGAGEMENT — contact shortlisted lawyers ([lawyer-shortlist.md](#)); send briefs (Lawyer-Brief-Corpus-Rights + Lawyer-Brief-Name-Opinion + existing [lawyer-brief.md](#))

The critical path is: lawyer engaged → opinions received → decisions made → entity formed → bank opened → launch sequence begins.

Document Index (02-legal/ as of 2026-06-14)

File	Type	Created / Existing
terms-of-use-draft-2026-06-14.md	P0 public-facing	Created 2026-06-14
disclaimer-and-educational-use-notice-draft-2026-06-14.md	P0 public-facing	Created 2026-06-14
cookie-and-tracking-notice-draft-2026-06-14.md	P1 public-facing	Created 2026-06-14
b2b-data-processing-agreement-draft-2026-06-14.md	P1 B2B	Created 2026-06-14
ip-and-takedown-procedure-draft-2026-06-14.md	P1 operational	Created 2026-06-14
pdpl-breach-notification-procedure-draft-2026-06-14.md	P1 operational	Created 2026-06-14
lawyer-brief-corpus-rights-2026-06-14.md	Lawyer brief	Created 2026-06-14
lawyer-brief-name-opinion-2026-06-14.md	Lawyer brief	Created 2026-06-14
launch-gate-legal-checklist-2026-06-14.md	This document	Created 2026-06-14
privacy-notice-full-stage-draft-2026-06-14.md	P1 public-facing	Created prior session
acceptable-use-policy-draft-2026-06-14.md	P1 public-facing	Created prior session
legal-gap-audit-2026-06-14.md	Audit	Created prior session
lawyer-brief.md / .docx	Earlier lawyer brief	Existing — May 2026
brief-defensible-naming.md	Earlier naming analysis	Existing — May 2026
risk-memo.md	Internal risk analysis	Existing — May 2026
lawyer-shortlist.md	Candidate law firms	Existing — May 2026
customer-agreement-eula.docx	B2B commercial	Existing — May 2026
mutual-nda.docx	NDA	Existing — May 2026
one-way-nda.docx	NDA	Existing — May 2026
ip-assignment-agreement.docx	Internal/HR	Existing — May 2026
confidentiality-and-non-compete-agreement.docx	Internal/HR	Existing — May 2026
influencer-creator-partnership-agreement.docx	Marketing	Existing — May 2026
service-level-agreement-sla.docx	B2B commercial	Existing — May 2026
60-day-pilot-agreement.docx	B2B commercial	Existing — May 2026

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